

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Cassandra Fenkel	Team: Squad #14	CCRB Case #: 201706322	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/28/2017 11:30 AM	Location of Incident: § 87(2)(b) 41st Precinct stationhouse		Precinct: 41	18 Mo. SOL 1/28/2019	EO SOL 1/28/2019
Date/Time CV Reported Thu, 08/03/2017 3:28 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/03/2017 3:28 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Eric Smith	25541	948277	041 PCT
2. SGT Joseph Kim	02273	948550	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Hosward Veloz	08154	955633	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Joseph Kim	Abuse: Sergeant Joseph Kim entered § 87(2)(b) in the Bronx.	§ 87(2)(b)
B.POM Eric Smith	Abuse: At the 41st Precinct stationhouse, Police Officer Eric Smith threatened § 87(2)(b) with the use of force.	§ 87(2)(b)
C.POM Eric Smith	Discourtesy: At the 41st Precinct stationhouse, Police Officer Eric Smith spoke discourteously to § 87(2)(b)	§ 87(2)(b)

Case Summary

On August 3, 2017, § 87(2)(b) called the CCRB and filed this complaint.

On July 28, 2017, at approximately 11:30 a.m., Sgt. Joseph Kim, PO Hosward Veloz, and approximately four additional officers from the 41st Precinct arrived at the home of § 87(2)(b) and his wife, § 87(2)(b) located at § 87(2)(b) in the Bronx. Sgt. Kim entered § 87(2)(b) (**Allegation A: Abuse of Authority**, § 87(2)(g) § 87(2)(b) was arrested for § 87(2)(b) (Board Review 01) and transported to the 41st Precinct stationhouse, where PO Eric Smith of that command allegedly threatened § 87(2)(b) with the use of force (**Allegation B: Abuse of Authority**, § 87(2)(g) and allegedly spoke discourteously to him (**Allegation C: Discourtesy**, § 87(2)(g) § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

There is no video evidence in this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Sergeant Joseph Kim entered § 87(2)(b) in the Bronx.

§ 87(2)(b) (Board Review 03) testified that the incident began when members of the FDNY forced entry into his apartment after responding to a prank call. § 87(2)(b) who was home alone and in the shower, heard noises coming from his front door. § 87(2)(b) got out of the shower, opened his front door, and saw numerous firefighters standing in the hallway of his apartment building. § 87(2)(b) asked, “Did you just break my fucking door?,” at which point, the firefighters began to leave. § 87(2)(b) followed the firefighters outside, and he called § 87(2)(b) and told her to come home. § 87(2)(b) arrived within minutes. § 87(2)(b) reentered his apartment and got back into the shower. There, he heard § 87(2)(b) answer the front door. § 87(2)(b) overheard officers state that someone had harassed the firefighters. He overheard § 87(2)(b) close the door and walk away from the door. § 87(2)(b) exited the bathroom and allegedly saw Sgt. Kim open the front door of the apartment. Approximately eight officers came inside.

§ 87(2)(b) was unavailable to the investigation (see IAs for contact attempts).

FDNY Lieutenant § 87(2)(b) (Board Review 04) testified that the fire department responded to § 87(2)(b) residence due to a report of someone needing medical assistance inside. No one answered the door, resulting in the firefighters forcing entry. Suddenly, § 87(2)(b) ran to his door and yelled, “Get the fuck out of my apartment.” § 87(2)(b) chased the firefighters outside of his building and spit in Lieutenant § 87(2)(b) s face. Lieutenant § 87(2)(b) requested police assistance and upon the arrival of officers, Lieutenant § 87(2)(b) informed them that he wanted § 87(2)(b) arrested for assaulting him. Lieutenant § 87(2)(b) accompanied the officers back to the apartment, where § 87(2)(b) answered the door. § 87(2)(b) was “very very very nice” and she allowed the officers to enter the apartment.

Sgt. Kim (Board Review 10), the supervisor on scene, testified that he knocked on the door for approximately two minutes before § 87(2)(b) answered. § 87(2)(b) opened the door halfway and spoke to Sgt. Kim. § 87(2)(b) appeared angry and stated that neither she nor § 87(2)(b) called 911. She complained that unknown individuals have previously placed false 911 calls regarding their apartment. § 87(2)(b) could be heard in the background yelling, “This is bullshit.” Sgt. Kim asked § 87(2)(b) if the officers could come inside. § 87(2)(b) continued to

deny that she called 911, but fully opened the door and stepped away from it. Sgt. Kim interpreted § 87(2)(b) actions as consent to enter. At this point, Sgt. Kim, PO Veloz, and two additional officers entered the apartment and arrested § 87(2)(b). Sgt. Kim denied that he let himself inside the apartment.

PO Veloz (Board Review 05) testified that § 87(2)(b) immediately came to the apartment door, did not initially open it, and instead spoke through the closed door. § 87(2)(b) stated that the FDNY broke her door, and that she was not involved in the incident. PO Veloz asked § 87(2)(b) to open the door numerous times, though she did not initially do so. § 87(2)(b) eventually opened the door halfway, and PO Veloz could hear § 87(2)(b) yell, “Don’t open no doors for those fucking assholes.” PO Veloz asked § 87(2)(b) if he could speak with § 87(2)(b). § 87(2)(b) opened the door fully and said, “Okay. Come in,” at which point PO Veloz and Sgt. Kim entered the apartment with two additional officers.

PO Smith (Board Review 06) was not present during this portion of the incident.

§ 87(2)(g)

Allegation B – Abuse of Authority: At the 41st Precinct stationhouse, Police Officer Eric Smith threatened § 87(2)(b) with the use of force.

Allegation C – Abuse of Authority: At the 41st Precinct stationhouse, Police Officer Eric Smith spoke discourteously to § 87(2)(b)

§ 87(2)(b) was arrested and transported to the 41st Precinct stationhouse, where he acknowledged calling a female officer “a piece of shit” and saying that she had a receding hairline. In response, PO Eric Smith of that command, took § 87(2)(b) into an empty room next to the holding cells and allegedly threatened to “beat his ass” and said, “There’s not going to be too many bitches. You’ll get your ass fucked up in here.”

PO Smith testified that § 87(2)(b) yelled at a female officer at the command and called her “every bitch in the book” while she took his pedigree information at the stationhouse front desk. PO Smith and PO Veloz instructed § 87(2)(b) to calm down, but he did not do so and continued to yell at the female officer. PO Smith and PO Veloz brought § 87(2)(b) to a spare room next to the holding cells for him to calm down. Inside the room, § 87(2)(b) continued to make threats and told the officers he would “fuck them up” when his handcuffs were removed. PO Smith gave § 87(2)(b) numerous commands to calm down and instructed him to sit on a couch. PO Smith denied telling § 87(2)(b) he would “beat his ass,” denied using the word “bitch,” and denied telling § 87(2)(b) “You’ll get your ass fucked up in here.”

PO Veloz corroborated that § 87(2)(b) cursed at the female officer and called her a “bitch.” PO Veloz said he and PO Smith brought § 87(2)(b) to a secondary holding cell to be searched prior to being lodged in the main holding cell and § 87(2)(b) continued to refer to the female officer as a bitch. PO Veloz and PO Smith ordered § 87(2)(b) to calm down. PO Veloz denied that PO Smith threatened § 87(2)(b) with the use of force and denied that PO Smith used any profanity.

Sgt Kim was not present during this portion of the incident.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to six CCRB complaints and has been named as a victim in 31 allegations (Board Review 07):
 - § 87(2)(b)
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- Sgt. Kim has been a member-of-the-service for eight years and this is the first CCRB complaint to which he is a subject.
- PO Smith has been a member-of-the-service for eight years and has been a subject in five CCRB complaints and eight allegations, of which none were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of February 14, 2018, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 08).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Squad No.: #14

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date